

23NWCV01111 23NWCV01111

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TENTATIVE ORDER

Defendant Colony Capital

Management, LLC's Demurrer is taken OFF-CALENDAR.

Defendant to give notice.

Background

This is an unlawful detainer case

("UD Action") regarding real property located at 10700-10712 Sessler Street, South Gate, CA 90280 ("Subject Property"). On April 12, 2023, Plaintiff Medline Management Corporation ("Medline") filed this action against Defendants Dan Kloss and Ioana Kloss, doing business as CNC Aero Machining.

On April 9, 2024, this case was consolidated with a related case titled Dan Kloss vs Jamal Dawood, et al., LASC Case No. 23NWCV02306 ("Title Action"). (4/9/24 Minute Order.). The Title Action was filed on April 12, 2023. A First Amended Complaint (FAC) was filed in that action on April 18, 2024. The FAC alleges that, in November 2021, Defendants Jamal Dawood, Christine Armani-Dawood, Quantum Properties LLC, and Does 1 to 100 fraudulently induced Kloss to grant his one-half interest in the Subject Property via a Grant Deed to Quantum Properties LLC ("Grant Deed") in order to "safeguard" his interest. (FAC, ¶ 16.) In return, Defendants issued an LLC membership certification transferring a one-half interest in Quantum Properties LLC to Precision Forging Dies, Inc. However, the membership interest was intended to be transferred to Kloss, not Precision Forging Dies, Inc. Through the action, Kloss seeks "to cancel and rescind the fraudulently

obtained Grant Deed or alternative, to involuntarily dissolve the LLC and have Plaintiff's one-half interest in the Property transferred back to Plaintiff."
(FAC, ¶ 28.)

The Title Action FAC alleges the following causes of action:

1.
Cancellation Of Written Instrument (Civ. Code § 3412);
2.
Fraud;
3.
Negligent Misrepresentation;
4.
Breach of Oral Contract;
5.
Financial Elder Abuse;
6.
Slander of Title;
7.
Intentional Infliction of Emotional Distress;
8.
Unfair Business Practices;
9.
Declaratory Relief; and
10.
Involuntary Dissolution.

Defendants Commercial Funding,
LLC, Colony Capital Management LLC, Colony Capital LLC, and Shore Pine LLC were

later named as Does 1 to 4, respectively.

On May 23, 2024,

Defendant/Cross-Complainant Quantum Properties LLC ("Quantum") filed a Cross-Complaint in the Title Action against Cross-Defendants Dan Kloss and Ioana Kloss, doing business as CNC Aero Machining, Anca Tiplea, and Roes 1 to 20.

On February 25, 2025, Quantum

filed the First Amended Cross-Complaint (FACC), adding C&C Aerol Machining and Aerospace Machining Company, Precision Forging Dies, Inc. as Cross-Defendants. On May 29, 2025, Quantum filed the Second Amended Cross-Complaint.

On August 1, 2025, Defendant

Commercial Funding, LLC filed a Cross-Complaint in the Title Action.

Defendant Colony Capital

Management, LLC (hereinafter, "CCM") now demurs to the Title Action FAC.

Defendants Colony Capital LLC (hereinafter, "CCL") and Shore Pine LLC (hereinafter, "Shore Pine") have filed a "Notice of Joinder in the Demurrer."

The Court notes that, on August

3, 2026, CCM and CCL were dismissed from the FAC without prejudice.

Requests for Judicial Notice

The Court rules on CCM's Requests

for Judicial Notice as follows:

- Omnibus

Declaration of Dan Kloss in Support of Debtor' Emergency Motion filed in the United States Bankruptcy Court on April 7, 2023 in the matter of In re Precision Forging Dies, Inc. (Case No. 2:23-bk-12015) (Exhibit 1) is denied.

- Notice

of Default recorded on 7/29/21 in the Los Angeles County Recorder's Office, and Notice of Trustee Sale recorded on 11/3/21 at the Los Angeles County Recorder's Office (Exhibit 2) is granted.

- Grant

Deed executed by Joanna Kloss and recorded on 11/29/21 in Los Angeles County Recorder's Office (Exhibit 3) is granted.

- Grant

Deed executed by Dan Kloss and recorded on 12/29/21 in Los Angeles County Recorder's Office (Exhibit 4) is granted.

- Articles

of Organization for Colony Capital Management, LLC (Exhibit 5) is denied.

The Court only takes notice of the existence of the documents and their filing/recording dates for purposes of notice, not for the truth of the matters asserted therein.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. ("Donabedian") (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the parties meet and confer "in person, by telephone, or by video conference." (Code Civ. Proc., § 430.41, subd. (a).)

On May 7, 2026, Counsel for CCM, CCL, and Shore Pine (and all Defendants) met and conferred via telephone with Kloss' counsel but the parties were unable to come to a resolution. (Bryner Decl., ¶ 2.)

The Court finds that the meet and confer requirement has been met.

Discussion

CCM's Demurrer primarily argues that CCM was not involved in the transactions between Dan Kloss, Quantum, and the Dawoods. Specifically, CCM was organized as a Wyoming LLC on July 13, 2023, approximately 1.5 years after the November 2021 subject transaction in which Kloss signed the Grant Deed. (See RJN, Exh. 5.) CCM argues that the FAC's theories of liability based on agency, membership, alter ego, aiding/abetting allegations are inapplicable where CCM was formed after the subject transaction. Because all causes of action depend on upon the subject transaction, the entire FAC fails to state a claim against CCM.

CCM further argues that the ninth cause of action for declaratory relief, which requests a judicial determination regarding the membership certificates of Quantum Properties, and the parties' rights and duties therein. Precision Forging Dies, LLC is one alleged member of Quantum. While the FAC seeks a determination of Quantum's members, the FAC fails add Precision Forging Dies, LLC as a Defendant to this action. Precision Forging Dies, LLC should be added as an indispensable party to the FAC.

As previously noted, CCL and Shore Pine filed a Notice of Joinder to CCM's Demurrer. On August 3, 2026, CCM and CCL were dismissed from the FAC without prejudice.

The issue is thus whether the Demurrer survives based on Shore Pine's Notice of Joinder.

The Court acknowledges that,

while there is no specific Code of Civil Procedure provision governing joinder for motions in general, a party can generally join another party's motion by filing a Notice of Joinder. However, to be effective, the joinder must 1) be timely filed and served, 2) establish the necessary factual foundation to support the motion, and 3) request affirmative relief on behalf of the joining party. (See, e.g., *Barak v. The Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 661 [finding trial court did not abuse its discretion to entertain a joinder to an anti-SLAPP motion to strike, where the joinder requested affirmative relief and stated how the underlying motion would also be applicable to the joining party].)

Here, Shore Pines' Notice of Joinder only states the following: "PLEASE TAKE NOTICE that Defendants Shore Pine, LLC and Colony Capital, LLC hereby join in Defendant Colony Capital Management, LLC's Demurrer to the Complaint and all of the causes of action therein, to wit: [all causes of action]." (See Notice of Joinder.) Thus, the Notice of Joinder fails to request any affirmative relief as to Shore Pines specifically. Further, it is not apparent from either the Demurrer or the Notice of Joinder how the Demurrer applies to Shores Pines. As noted by Plaintiff, the Demurrer's "central premise was unique to [CCM]: it allegedly did not exist when the 2021 conveyance occurred and supposedly had no interest or stake in [Quantum]. Neither premise disposes of the claims against Shore Pine." (Opp., 2:4-6.) Further, the bare-bones Notice of Joinder "supplies no Shore Pine-specific facts, formation record, operating agreement, membership record, or argument." (Opp., 4:5-6.) The Court agrees.

Based on this procedural issue, the Court does not reach the merits of the Demurrer to the extent that the opposition and reply anticipate arguments that would have been made by Shore Pines in a proper joint Demurrer.

Accordingly, Defendant Colony Capital Management, LLC's Demurrer is taken off-calendar.